

HOUSE No. 1808

The Commonwealth of Massachusetts

PRESENTED BY:

Patrick Joseph Kearney

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act maintaining the integrity of sex offender classifications.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>1/7/2025</i>

HOUSE No. 1808

By Representative Kearney of Scituate, a petition (accompanied by bill, House, No. 1808) of Patrick Joseph Kearney relative to reclassification of sex offenders by the Sex Offender Registry Board. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1595 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act maintaining the integrity of sex offender classifications.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 178L of chapter 6 of the General Laws, as appearing in the 2020 Official Edition,
2 is hereby amended by adding the following subsection:-

3 (3)(a) For offender-initiated motions for reclassification, the burden of proof shall be on
4 the sex offender to show by clear and convincing evidence that his or her risk of re-offense and
5 degree of dangerousness posed to the public have decreased following his or her final
6 classification. In making this determination, the board may consider information used in prior
7 classification decisions.